

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404637	DAVIES VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF TABITHA DAVIES BY AMERICAN HONDA MOTOR CO., INC.

Tentative Ruling: No tentative ruling. Hearing is continued to 12.03.26 pursuant to CCP 437c(h).

Jury trial is continued to 1.15.27.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406355	ZENERGY CAPITAL LLC VS PALM SPRINGS CEMETERY DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF ZENERGY CAPITAL LLC BY PALM SPRINGS UNIFIED SCHOOL DISTRICT

Tentative Ruling: A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) The court disregards any factual assertions raised in the demurrer and reply papers that are not pled. Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) Here, the complaint is not so uncertain such that Defendant does not understand the claims. The specific location of the easement can be determined during discovery.

4th Cause of Action Breach of Contract:

Under the Government Claims Act (the "Act"), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity ("government claim") which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity's actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for non-compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after